

IN THE CIRCUIT COURT OF BENTON COUNTY, MISSOURI

NSI 6, LLC,

Plaintiff,

v.

Case No. 26BE-CC00056

BENTON COUNTY, MISSOURI,

STEVE DALESKE, in his official capacity
as Presiding Commissioner of
Benton County, Missouri,

SCOTT HARMS, in his official capacity as
North Side District Commissioner of
Benton County, Missouri, and

LARRY BERRY, in his official capacity as
South Side District Commissioner of
Benton County, Missouri,

Defendants.

NOTICE OF HEARING

ON PLAINTIFF'S MOTION FOR TEMPORARY RESTRAINING ORDER

TO: Benton County, Missouri; Steve Daleske, in his official capacity as Presiding Commissioner of Benton County, Missouri; Scott Harms, in his official capacity as North Side District Commissioner of Benton County, Missouri; Larry Berry, in his official capacity as South Side District Commissioner of Benton County, Missouri.

PLEASE TAKE NOTICE that Plaintiff NSI 6, LLC contemporaneously herewith files Plaintiff's Motion for Temporary Restraining Order, incorporating by reference its the supporting Verified Petition filed August 24, 2026. Plaintiff will present the Motion for Temporary Restraining Order to the Court for hearing as follows:

Date: September 2, 2026

Time: 1 p.m.

Location: Judge Brandon M. Baker
Benton County Circuit Court
316 Van Buren Street
Warsaw, MO 65355

At the hearing, Plaintiff will request that the Court enter a temporary restraining order pursuant to Missouri Supreme Court Rule 92.02(a), prohibiting Defendants from enforcing, applying, implementing, or threatening to enforce the August 10, 2026 "Order and Ordinance of County Commission of Benton County, Missouri—An Order and Ordinance Enacting a Temporary Moratorium on Data Centers Within Benton County, Missouri for Purposes of Due Diligence" (the "Order") against Plaintiff, its Property, or the Project, pending further order of the Court and a hearing on preliminary injunctive relief.

Plaintiff will rely on the Motion, the Verified Petition, and such additional evidence and argument as may be presented at the hearing. A copy of the Motion and Verified Petition is being served with this Notice.

Defendants may appear at the hearing, file a written response, present evidence, and be heard in opposition to the requested temporary restraining order.

LOWTHER JOHNSON

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